

TRUSTS

IN RE: 1988 GIVLER LIVING TRUST

CASE NUMBER: 23PB-0031977

This matter is on calendar for confirmation of filing of Receipts and Petition for Final Discharge. No Receipts have been filed. No Petition for Final Discharge has been filed. No Status Report has been submitted. This matter is continued to **Monday, August 10, 2026, at 2:30 p.m. in Department 44** to confirm filing of the Receipts and Petition for Final Discharge. If the Receipts and Petition for Final Discharge cannot be filed prior to the continued hearing date, the Trustee is ordered to submit a Status Report at least five court days prior to the continued hearing date. **No appearance is necessary on today's calendar.**

IN RE: EDWARD H. YOUNG AND JUDY J. YOUNG 2010 FAMILY TRUST

CASE NUMBER: 26PB-0033396

This matter is on calendar for further proceedings on a Petition for Order Confirming Successor Co-Trustees and Confirming Trust Assets. No further documents have been filed to address the issues raised on June 1, 2026. Considering Petitioner's failure to file and serve the documents necessary to move forward, the Petition is **DENIED** without prejudice. The clerk is directed to close the file. **No appearance is necessary on today's calendar.**

IN RE: GEORGE E. HERRICK AND M. GLORIA HERRICK 2003 REVOCABLE TRUST DATED JULY 29, 2003

CASE NUMBER: CVPB20-0030695

This matter is on calendar for further proceedings regarding resetting of settlement conference regarding status of settlement. This matter is also on calendar for hearing on Trustee's Notice of Motion and Motion to Enforce Settlement Agreement. The matter has been properly noticed with proof of service on file. No objections have been raised.

The Court's order dated November 12, 2020, has an agreement attached that established distribution of the trust. A motion for enforcement of the settlement agreement was filed by the former trustee, Carol Layton, on January 31, 2022. The motion was continued multiple times by the request of counsel for various reasons. While the motion for enforcement was pending, the successor trustee Karalee Layton, filed a Petition for Recovery of Trust Property on June 28, 2024. The Petition alleges that Brennan Asset Management Group inadvertently sent Major Herrick and Gary Herrick overpayments of \$107,455.00 each, to the detriment of George Herrick, and that Major and Gary would not return the overpaid funds. Gary then filed a Petition for an Accounting. An amended Petition for Recovery of Trust Property was filed on October 15, 2024, alleging the same overpayment claims as the first petition. The Ms. Layton also filed a Petition for Settlement of First Account and Report on November 26, 2024. All matters were continued again to January of 2025. The parties appeared on January 27, 2025, and stated that a settlement of all matters had been reached. The parties appeared on October 13, 2025, and stated that the settlement had been fully signed and payment would be made by Major and Gary forthwith. The matter has been continued several times for status of compliance with repayment.

The present motion seeks to enforce the agreement from October of 2025 regarding repayment of the \$107,455.00 by Major and Gary and requests the Court enter a judgment in the amount of \$107,455.00 against Major and Gary each, plus reasonable attorney's fees and costs. A copy of the agreement has not been submitted, thus the Court is unable to determine the terms of the agreement, whether the agreement resolves all pending petitions and motions, and whether the requested judgment is appropriate. The

matter is continued to **Monday, August 3, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Motion to Enforce Settlement Agreement and all remaining Petitions and Motions. A copy of the settlement agreement from October of 2025 is required to be filed. Petitioner is also required to file and serve a new Notice of Hearing for the continued hearing date on all parties entitled to notice. **No appearance is necessary on today's calendar.**

IN RE: LANA FRYE AND ROBERT KEOUGH FRYE REVOCABLE TRUST
CASE NUMBER: 26PB-0033350

This matter is on calendar for further proceedings on a Petition for Order to Confirm Validity of Trust, Confirm Trustee, and Confirm Assets to Revocable Trust. An amended Petition has been filed which sufficiently addresses the issues raised on June 1, 2026. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Court finds that Petitioner has established that the real property at issue is held by the Trust. The Petition is **GRANTED**. A proposed Order has not been submitted in compliance with Local Rule 15.06. Petitioner shall prepare the order. The clerk is instructed to close the file upon the processing of the order. **No appearance is necessary on today's calendar.**

IN RE: MARGIE ROSE JOSE FAMILY TRUST
CASE NUMBER: 26PB-0033361

This matter is on calendar for further proceedings on a Petition to Compel Accounting, Dispute Care Determination, and Right to Stay. The matter has been properly noticed with proof of service on file. No objections have been raised. The Petition has not been signed or verified, as required by Probate Code Section 1021 and CRC 7.103.

The amended Petition filed on June 22, 2026, provides a copy of the Trust. The trust provides that David Guadagni shall share fifty-percent of the residue of the trust assets "with his sister and brother if they become active in the settlor's care during her life or, at a minimum, call the settlor at least one time a week." Petitioner disputes Mr. Guadagni's care determination; however, the trust explicitly vests Mr. Guadagni with sole discretion to determine whether the settlor's other children became active in her life. It appears based on the allegations in the Petition that Mr. Guadagni determined that Petitioner was not active in settlor's care during her life, therefore Petitioner is not a beneficiary of the trust.

Additionally, Petitioner alleges she was granted a life estate in real property owned by the trust, that the real property was burned in the Carr Fire, and the trust received insurance money related to the destruction of the home. Petitioner currently lives in a home that was purchased with that insurance money and the trustee of the trust is requesting Petitioner vacate the real property. Consequently, Petitioner requests an accounting of the insurance money. Civil Code Section 1624 requires that any interest in real property be evidenced by a writing. No writing has been produced as evidence that Petitioner was granted a life estate in the real property.

The Petition is **DENIED** without prejudice. A proposed Order has not been submitted in compliance with Local Rule 15.06. Petitioner shall prepare the Order. The clerk is instructed to close the file upon processing of the order. **No appearance is necessary on today's calendar.**

IN RE: ROBERTA V. HARRISON REVOCABLE LIVING TRUST
CASE NUMBER: 25PB-0033130